**Nestle India Limited**
Nestle House, Jacaranda Marg
M-Block, DLF City, Phase-II
Gurgaon 122002
India



| **Purchase order : 4551894243** | Date: 29.01.2019 Printed: 30.01.2019 |
|---|---|
| **Vendor Number:** 101023735<br>Nihva Technologies Pvt Ltd<br>Coromant Housing Society<br>House 8/1<br>Sector 27, Nigdi Pradhikaran<br>Nigdi<br>Pune 411044<br>India<br>Tel:: 020 66304033 Fax:<br>e-mail: sales@nihva.com<br>GSTIN : 27AAECN0437H1ZM<br><br>**Your reference:**<br>**For the attention of:** | **Terms of Deliv.:**<br>**Currency:** INR Indian Rupee<br>**Delivery Date:** 28.02.2019<br><br>**Our Reference:**<br>**Purchasing Contact:**<br>IN Sam OB HR Tel: |
| **Deliver To:**<br>IN PL Samalkha<br>Nestle India Ltd Samalkha Fac.<br>Post Box 1<br>Patti Kalyana Kiwana Road<br>District Panipat<br>Samalkha 132101<br>India<br>00.000.000/0007-87<br>GSTIN : 06AAACN0757G1ZP | **Invoice To:**<br>Nestle India Ltd<br>Post Box No-01,Patti Kalyana Kiwana Road<br>Samalkha- 132101, Dist.Panipat,HARYANA<br>GSTIN: 06AAACN0757G1ZP |

**Nestlé Responsible Sourcing Standard:**

Our Nestlé Responsible Sourcing Standard describes the requirements and ways of working that we apply together with our suppliers to ensure the sustainable long-term supply of materials and services to Nestlé. It sets out basic non-negotiable standards as well as important and urgent sustainability practices that we ask our suppliers, their employees, agents and subcontractors to respect and to adhere to at all times when conducting business.

**Terms of Payment :**

Inv received 01st to 03rd- Due on 27th same month
Inv received 04th to 18th- Due on 12th next month
Inv received 19th to EOM- Due on 27th next month

Refer your final offer mail dated 18.01.2019

- Tax - IGST Extra @18%
- P&F: Nil
- Freight : Extra at actual amx. Up to 60,000
- Warranty : 1 year from the date of supply

INSTRUCTIONS FOR INVOICE SUBMISSION

Please send your Invoices for Materials supplied & Services to any of Nestle India Factory/Project direct to Nestle Shared Services Centre at below address:-

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Gurgaon 122002
India



| Item | Material No. | Vendor Mat. No. | HSN/SAC Code | Description | Quantity | Unit | Delivery Date & Time | Price/Unit | *Net Value |
|---|---|---|---|---|---|---|---|---|---|

Nestlé India Limited
Shared Service Centre,
ASF Towers, Tower-A, Ground Floor,
Plot No. 249 E, Udyog Vihar Phase IV,
Gurugram 122016, Haryana.
India
Email ID (india.vendorservices@in.nestle.com) as well as the Telephone number
(0124-6407444 / 4447444) of Vendor Services

Please follow below instructions to avoid payment delays:-

Invoice should carry PO lines number and cost on invoice should be as same as in PO line item.
Any discrepancy should be brought immediately to the buyer's notice and no amendment will be done after goods are delivered.
Invoices which do not match with PO, will be returned to the vendor.

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10 90072557 Hygienic Roll Fast Door

2 each

PO against Contract : 4615232960 Item 10

| | | | | | |
|---|---|---|---|---|---|
| Gross Price | 640,000.00 | INR | | 1 EA | 1,280,000.00 |
| Freight (V) | | | | | 60,000.00 |
| Assessable Value | 670,000.00 | INR | | 1 EA | 1,340,000.00 |
| IN: Input IGST | | | 18.00 % | | 241,200.00 |

Albany Make Rapid Roll Up Door RR300 Clean

Size: (W) 2000 mm X (H) 1900 mm

Door design : The entire door (side frame, motor and roll cover, and bottom profile) is made from stainless steel V2A. The smooth surface facilitates easy cleaning and avoids the accumulation of particle deposits.

Colour of Curtain : To be Finalized during Drawing Approval

Surface of End Shield : Stainless Steel
Power supply : Phase 230V

Control box Panel :Stainless steel with provisions of Integration with PLC as mentioned in required specifications

safety contact edge : ACC to DIN EN 12445, Self monitoring
Potential free signal contacts : door open / door close
Failure signal performance increased up to max 24 V DC
surface of the steel parts: Stainless steel
Type of covering : complete covering
Top Cover : Inclined Minimum 30-40 Degrees
Type of curtain : 2.0mm thick Polyester - with Vision Panel

Door Controller : Door Controller with Manual Push Buttons for Door Operations & LED Indiciations

safety light barrier : for additional protection of the door closing line, integrated in the side frames.

Interface for conveyer systems : Provision of Interlocks through Potential Free Contacts & Command Signal +24v DC

All Other Specifications of Door to comply Nestle Requirement & specifications shared on Email.

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| Item | Material No. | Vendor Mat. No. | HSN/SAC Code | Description | Quantity | Unit | Delivery Date & Time | Price/Unit | *Net Value |
|---|---|---|---|---|---|---|---|---|---|

| | |
|---|---|
| **Total net value excl. tax** | **1,340,000.00** |
| **Total including tax** | **1,581,200.00** |

**PO approved by**

**Rahul Koundal 29.01.2019 13:12:41 CET**

**Nestle India Limited**
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India



# Purchase Order Terms & Conditions

#Please peruse the terms and conditions of the purchase order since they have been modified on account of Goods & Services Tax#

(To which the Supplier agrees by accepting this Purchase Order)

1). Time of delivery shall be regarded as the essence of the Purchase Order. If the Supplier shall fail or neglect, to make the delivery within the time and in the manner herein specified the buyer shall be at the liberty to cancel the Purchase Order and the supplier shall be liable to pay the buyer damages for losses incurred. If however, the supplier is prevented by force majeure to make the delivery within the time and in the manner specified herein the buyer shall be at liberty to cancel the Purchase Order, without reference to any compensation.

2). Force majeure for the purposes of this Purchase Order shall mean riot, workers strike, mob violence, war, act of god or other irresistible force beyond ones control.

3). The Purchase Order shall not be billed at higher prices then quoted on this Purchase Order or altered in any respect without the buyer#s written consent. Prices on the supplier#s challan must agree with prices on this Purchase Order with subsequent alteration, which the buyer has agreed to in writing. Challan submitted without prices are subjected to the prices appearing on the Purchase Order or to subsequent alterations which the buyer has agreed to in writing.

4). The prices shown herein are, unless otherwise expressly mentioned, inclusive all the taxes, duties, cess etc. that may be levied / become leviable either now or latter and the buyer will not entertain any other / further claim for any supplier. The Buyer reserves the right to renegotiate the prices shown herein for input tax credits and efficiencies on account of GST available to Supplier, prior to the supply being made and to the extent of supply remaining to be made.

5). All materials will be subject to the buyer#s inspection and approval before acceptance. The supplier hereby warrants the merchandise and workmanship of material delivered and work performed, notwithstanding the buyer#s acceptance or use. The Purchase Order must be in accordance with specifications drawings or samples in all respects. No liability will be assumed for losses or consequences resulting from rejection of material at any stage.

6). If the supplies do not conform to clause 5 above, the buyer reserves the right to cancel the Purchase Order. Where not used, the supplier will have to make its own arrangements to remove the rejected materials at its own expense either from the buyer#s factory or from any other place of storage. Till they are not removed, the rejected materials will lie entirely at supplier#s risk and responsibility.

7). Collection and bank charges, if any, will be supplier#s account.

8). The goods should be packed securely according to the nature of material to be supplied and in accordance with the instructions to be given by the buyer.

9). This Purchase Order is subjected to the terms and conditions herein stated.

10). The materials to be supplied under this Purchase Order shall comply with all local legislation and regulations.

11). This Purchase Order can be cancelled by either of the party by giving 15 (fifteen) days written notice.

12). Supplier shall confirm the terms and conditions of this Purchase Order including the price, quantity, specifications and dispatch schedules.

13). Supplier shall provide a proper invoice in the form and manner prescribed under applicable GST Act(s) read with relevant Rules (GST Law), containing all the particulars mentioned therein. The Supplier shall upload the details of the supplies in prescribed Form/s on GSTN and pay the GST indicated on the invoice, within the time prescribed under GST Law. In case of any increase/ decrease in prices with respect to original invoice, returns, rejection or any other adjustment, credit note/ supplementary invoice, as the case may be, shall be issued by Supplier as per GST law. Supplier shall upload the details of credit note/ supplementary invoice in prescribed form on GSTN and pay the GST indicated on supplementary invoice, within the time prescribed under GST Law.

14). In case of any advance payment by the Buyer to the Supplier, the Supplier shall issue receipt voucher as per GST Law and pay tax, if prescribed and upload the details in prescribed Form/s on GSTN within the time prescribed under GST Law.

15). Supplier shall ensure compliances with all requirements under GST Law, including obtaining and maintaining a valid GST Registration for the place from where supply is made, documents and compliances mentioned in point 13 above, or other documentation/ compliances that may be applicable in such form and manner as may be prescribed under the GST Law that may be necessary to enable or assist the Buyer to claim or verify any input tax credit, set off, rebate or refund in relation to GST applicable in respect of any supply under this Purchase Order. Supplier shall promptly reconcile and resolve any mismatch or discrepancy, reflected through GSTN matching, to ensure that Buyer avails eligible credit without delay. The Buyer shall have a right to withhold any future amounts payable to the Supplier in the event there is any item reported in mismatch report, till the time the same is rectified by the Supplier in the GSTN.

16). In the event that input tax credit of the GST charged by Supplier is denied to Buyer due to any reason attributable to the Supplier, the Buyer shall be entitled to recover such amount from the Supplier by way of adjustment from any payments to the Supplier. In addition to the amount of GST, the Buyer shall also be entitled to recover interest payable under GST Law, and penalty, in case any penalty is imposed by the tax authorities on the Buyer.

17). In the event that the Supplier fails to comply with GST Law including obligations under point nos. 13 to 16 above, the Buyer shall not be liable to make any payment against such invoice and Supplier shall be solely responsible and liable for all consequences. In event the Supplier does not deposit GST, then without prejudice to provisions of point 16 above, the Buyer shall be entitled to terminate this Purchase Order with immediate effect and the Supplier shall be liable to pay such damages as may be reasonably estimated by the Buyer.

18). Any dispute arising out of this Purchase Order is subjected to the court in the State of Delhi.

19).As required under the provisions of Plastic Waste Management Rules, 2016 (PWM rules), it is the responsibility of all Vendors to ensure accurate and correct declaration of their name and registration number (as obtained from the respective State Pollution Control Board / appropriate Government Authorities under PWM Rules) in each and every single and multilayered plastic packaging

20). Customer Contact Centre is available at Shared Services as single point of contact to address Vendor queries and resolve them. Details are given below #
Mail ID : india.vendorservices@in.nestle.com
Phone No. 0124 640 7444 (operational from 0930 Hrs to 1700 Hrs). Please note this service will be available only on working days

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All invoices must bear Purchase Order number, Suppler Code and should be GST compliant. Invoices should reach at following address within 3(three) working days after receipt of material at relevant Nestlé site or rendering/ completion of the services:

Nestlé India Limited
Shared Service Centre
ASF Towers
Tower-A, Ground Floor,
Plot No. 249 E,
Udyog Vihar Phase IV,
Gurugram 122016

Nestlé India Limited (CIN: L15202DL1959PLC003786)
PAN Number: AAACN0757G
Registered Office: 100 / 101, World Trade Centre, Barakhamba Lane, New Delhi - 110 001
Website: www.nestle.in; Email : Corporate@in.nestle.com